

24STCV34553 24STCV34553

County: los-angeles

Division: Civil Law and Motion

Department: 310

Hearing date: 2026-08-04

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Case Number: 24STCV34553 Hearing Date: August 4, 2026 Dept: 310

Tentative Ruling

Judge Kevin C. Brazile

Department 310

Hearing Date: August 4, 2026

Case Name: Zackary v. Tesla, Inc., et al.

Case No.: 24STCV34553

Matter: Motion for Attorney Fees and Costs

Moving Party: Plaintiffs Shahram Zackary

Responding Party: Defendant Tesla, Inc.

Notice: OK

Ruling: The Motion is granted in part.

Moving party to give notice.

The Court encourages all parties to appear remotely via LA CourtConnect. If submitting on the Court's tentative ruling, please follow the instructions provided above.

This is a lemon law matter. The parties have settled this matter, and Plaintiff now seeks "an award of attorneys' fees in the amount of \$19,725.00, costs in the amount of \$1,204.50, and a lodestar multiplier of 1.1 in the amount of \$1,972.50, for a

total award of \$22,902.00.”

The Court finds that Plaintiff is the prevailing party entitled to fees and costs.

California courts utilize the lodestar method to determine a reasonable fee award, multiplying the number of hours reasonably expended by a reasonable hourly rate (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1132). A court may adjust the lodestar figure downward based on factors such as lack of success, inefficiency, or over-litigation (*Gorman v. Tassajara Development Corp.* (2009) 178 Cal.App.4th 44, 92).

The lodestar figure is premised on 30 hours at \$575 per hour by counsel Kohen and 6.6 hours at \$375 per hour by counsel Artolozaga.

The Court, in the exercise of its discretion, reduces the rate of Kohen to \$525.

The Court will deduct 10 hours for Kohen, who spent an unreasonable amount of time on various tasks, such as drafting the instant Motion/Reply, researching databases, opposing the motion to compel arbitration, etc.

The Court will not award a multiplier because, among other things, this was not a novel or complex matter.

The Court will award the requested costs, which appear unopposed.

In sum, the Motion is granted in part. The Court awards \$12,975 in attorney fees and \$1,204.50 in costs.

Moving party to give notice.